Raj Kumar vs State Nct Of Delhi on 23 December, 2024

Author: Chandra Dhari Singh

Bench: Chandra Dhari Singh

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* IN THE HIGH COURT OF DELHI AT NEW DELHI
+ BAIL APPLN. 4544/2024
RAJ KUMAR
Through:

versus

STATE NCT OF DELHI
Through:

CORAM:
HON'BLE MR. JUSTICE CHANDRA DHARI SINGH
ORDER

% 23.12.2024

1. The instant bail application under Section 482 of the Bharatiya Nagarik Suraksha Sanhita, 2023 (earlier under Section 438) of the Code of Criminal Procedure, 1973 has been filed on behalf of the petitioner/applicant seeking grant of anticipatory bail in FIR No. 160/2023 registered at Police Station Cyber Police Station, Dwarka for the offence punishable under Sections 420B of the Indian Penal Code, 1860 (IPC).

2. Mr. Satish Kumar, learned APP for the State filed the status report, however, the same is not on record. During the arguments, he placed the status report before this Court which has been taken on record.

3. Learned counsel appearing on behalf of the applicant submitted that the applicant is an innocent person and has not committed any offence as This is a digitally signed order.

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4. It is submitted that during the investigation, the applicant's name came into the picture on the basis of false and fabricated story and there is no evidence on record or any material against the

applicant for establishing his commissioning of alleged offence.

5. It is submitted that there is no previous involvement of any crime of the applicant, therefore establishing his clean antecedents. It is submitted that the applicant is a permanent resident of Sirsa, District of Haryana and he is charged under the offence punishable under Section 420/120B of the IPC, the maximum punishment for which is 7 years.

6. It is submitted, on instructions, that the applicant shall cooperate with the investigating agency as when required and abide by all the terms and conditions as imposed by this Court while granting the bail.

7. Per contra, learned APP for the State vehemently opposed the instant application and submitted that the applicant is involved in cheating the complainant by giving online part-time job. In lieu of that, the applicant asked money from the complainant. It is submitted that a total fraud of Rs. 3,30,000/- was committed by the group of accused persons including the applicant herein out of which Rs. 33,000/- was credited in the applicant alleged IndusInd Bank current A/c. No. 259468245408 bearing name "Anchra Poultry Farm".

8. It is submitted that despite giving several notices under Sections 41A of the Code of Criminal Procedure, 1973, the applicant has chosen not to cooperate in the investigation. It is submitted that since the applicant has not This is a digitally signed order.

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9. Heard learned counsel appearing on behalf of the parties and perused the contents made in the application as well as the status report which has been placed before this Court.

10. It is admitted fact that the applicant has clean antecedents and has no previous criminal history. He is 31 years of old age and an innocent person as submitted by learned counsel for the applicant and no material evidence establishing his involvement has been produced by the investigative agency till now. He also undertook that the applicant shall cooperate with the investigating agency as when required.

11. Taking into consideration of the aforesaid facts and circumstances in the foregoing paragraphs, this Court is inclined to grant interim protection to the applicant. Accordingly, it is directed that in the event of his arrest, the applicant be released on bail on his furnishing person bond in the sum of Rs.25,000/- (Rupees Twenty Five Thousand only) with two solvent surety of like amount to the satisfaction of the Investigating Officer subject to the conditions as follows:-

(a) he shall surrender his passport, if any, to the Investigating Officer and shall under no circumstances leave India without prior permission of the Court concerned;

(b) he shall appear before the Investigating Officer of the case as and when required;

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(c) he shall not directly or indirectly make any inducement, threat or promise to any person acquainted with the facts of the case;

(d) he shall provide his mobile numbers and keep it operational at all times;

(e) In case of change of residential address and/or mobile number, the same shall be intimated to the Investigating Officer/Court concerned by way of an affidavit.

(f) he shall commit no offence whatsoever during the period he is on interim protection.

12. List on 29th January, 2025.

CHANDRA DHARI SINGH, J DECEMBER 23, 2024 gs/av Click here to check corrigendum, if any This is a digitally signed order.

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